

Incident 1: Job Analysis

Summary

Some employees are confused about their job duties. The firm has no written job descriptions. As HR manager, you have investigated the various methods and costs of doing a job analysis for the firm. Proposals below are from the best-qualified and most reasonably priced firm you could locate. Make one selection from the following options; the cost will automatically be charged against your budget.

Full Text

At the last meeting of managers and supervisors, a major topic of discussion pertained to employee confusion regarding their job duties. Some employees refuse to do any work outside their usual routine, exclaiming, "That's not my job!" This is somewhat understandable since the company has no written job descriptions. Job duties have been informal understandings, originating when the company began only a few years ago (when the company had few employees), and no one had the time or inclination to rectify the situation.

As HR manager, you have investigated the various methods and costs of doing a job analysis for the company. Any job analysis program includes writing a job description for each job in the company. You have discovered that job descriptions have many uses, including: recruitment, interviewing, orientation, training, job evaluation, wage compensation survey, performance appraisal, and outplacement. Although there are no dangerous jobs in your operation, the Occupational Safety and Health Act of 1970 requirements state that a company must specify "elements of the job that endanger health, or are to be considered unsatisfactory or distasteful to the majority of the population." Providing a job description to employees is a good defense against possible legal actions. Since you do not have the personnel or in-house expertise to do the work, you have received bids from various companies to do the work.

Proposals below are from the best-qualified and most reasonably priced company you could locate. Make one selection from the following options; the one-time cost will automatically be charged against your budget.

1. Analyze all jobs, including managerial. (Cost: \$20,000)
2. Analyze production/operations jobs. (Cost: \$15,000)
3. Categorize production/operations jobs, and do a job analysis for each category. (Cost: \$10,000)
4. Hire a consultant to make a plan for doing job analysis in-house. (Cost: \$5,000)
5. Put the project on hold. (Cost: none)

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in creating formalized job descriptions?
- What are the benefits of clear job descriptions?
- How might job descriptions prove to be detrimental?
- Which job(s) do you believe most need job descriptions?
- What choice did you make? Why?

Incident 2: Job Design

Summary

Studies have shown that the average worker utilizes only a portion of his/her abilities in their job. Many HR professionals are seeking more creative methods of capturing the energy and creativity of their workforce. Job design is the arrangement of the content, functions, and relationships of jobs in a manner that accomplishes organizational purposes and at the same time satisfies the needs of employees. A selection of possible solutions in job design is listed below.

Full Text

You have just returned from a workshop on job design. Many of the ideas concerning this subject were of great interest to you. Some of the notes you made during the workshop follow: Definition: Job design is the arrangement of the content, functions, and relationships of jobs in a manner that accomplishes organizational purposes and at the same time satisfies the needs of employees. Studies have shown that, on average, workers utilize only a portion of their abilities in their jobs. Many HR professionals are seeking more creative methods of capturing the energy and creativity of their workforce. Your company's personnel have complained about repetition, forced pacing of work, not knowing or understanding an identifiable end product, little social interaction, and the lack of a system to suggest improvements in their jobs. A selection of possible solutions in job design is listed below. Because of the small size of your HR staff, you will be unable to do as much as you would like in job design at the present time. However, you want to begin exploratory studies on one of the techniques for possible implementation in your firm.

Which one of the seven items listed here will you begin to work on?

1. Job rotation, job enlargement, and enrichment
2. Autonomous work groups
3. Ergonomics studies
4. Use of robotics technology
5. Flexible work schedules
6. Telecommuting
7. Job sharing

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in altering job design?
- What are the potential benefits of job design for the company?
- What are the benefits to the employee?
- What do you see as the most important reason to consider job design?
- What choice did you make? Why?

Incident 3: Recruiting for Temporary Positions

Summary

Your firm has been instructed by a customer (or client) to augment your product (or service) for the next quarter's production. This will require the addition of 50 part-time employees for only one quarter. The cost will not be charged against your budget but against the operations department budget. Your only responsibility is to recommend which method to use to fulfill this temporary need.

Full Text

Your company has been instructed by a customer (or client) to augment your product (or service) for the next quarter's production. No additional units are to be produced but you need to do the work to their specific instructions. This will require the addition of 50 part-time employees for only one quarter. The cost will not be charged against your budget but against the operations department budget. Your only responsibility is to recommend which method to use to fulfill this temporary need. You do not need to increase your Level 1 workers for this incident.

Post the jobs and allow current employees to recruit for these temporary positions.

Advantage: Low Cost; Opportunity to observe temporary employees for hiring for permanent jobs later.

Disadvantage: New workers may perceive (or hope) these may be on-going jobs and be very disappointed when they end.

Employ a local social service agency that locates temporary jobs for the homeless.

Advantage: Indicates good social responsibility; lower cost; could be very helpful in firm's community image

Disadvantage: The quality of work is unknown; candidates may not have worked for some time.

Ask for volunteers from current employees to work overtime.

Advantage: Keeps the work for current employees who may want added income

Disadvantage: If more than 50 workers sign up there will be hard feelings toward the firm by those employees not selected.

Obtain temporary workers from a Temporary Services company

Advantage: Immediately available personnel who can be put to work quickly

Disadvantage: Higher cost

Lease employees from an employee leasing company

Advantage: Leasing company is responsible for all HR functions; highly motivated and talented employees may be kept on after the temporary job ends by continuing to lease them from the leasing firm.

Disadvantage: Higher cost

Select your response from the methods listed below.

1. Allow current employees to recruit.
2. Employ homeless workers for the task.
3. Ask for volunteers from current employees to work overtime.
4. Use workers from a temporary services company.
5. Lease employees from an employee leasing company.

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in hiring temporary workers from outside the company?
- What risks does an employer face in hiring temporary workers from a professional agency?
- What are the risks of requesting volunteers from your own workforce to work overtime?
- Is it more beneficial to hire temporary workers from outside or from within the company?
- What choice did you make? Why?

Incident 4: Selection of Employee

Summary

You have been given four applicants for a Level 3 supervisor's job. You must make your selection based upon each applicant's qualifications and prior job performance and experience. Remember to hire a Level 3 supervisor in the Hiring decision input screen or if option 4 is selected, remember to promote an employee to Level 3.

Full Text

You have several applicants for a Level 3 supervisor's job. The job description follows:

- Supervise 15 technicians (ages 24–58)
- Schedule work for the section
- Attend planning meetings with top-level managers/staff
- Troubleshoot technical problems that may occur in the section

You must select from the applicants described below.

- Female, 30 years old, with a four-year business degree. Work experience as a retail store department head while attending college. Since she paid for all college expenses herself and was working full time, she required eight years to complete degree. No experience in the technical field but described by her professors as “a fast learner; highly motivated.”
- Male, 35 years old, with a two-year technical degree in the area to be supervised. No managerial experience. Has been working as a technician with another organization since graduating. Wants to join this company because he feels he has a greater opportunity for advancement. Current employer HR manager describes him as “an average worker; no attendance problems; perhaps frustrated by lack of opportunities with our company.”
- Minority male, 55 years old, who just retired from the military as an officer. Considerable experience in managing people but no technical background for the job; excellent references. He states, “I know I don't have the technical expertise right now but I've had many jobs in the military where I did not have the expertise, and I learned what I had to very quickly.”
- Male, 30 years old, who has been a technician in this section for one year. No degree; was trained “on the job.” First year performance evaluation was “good” on quality and quantity of work. The outgoing supervisor stated, “He will need to work hard to be a good delegator. He tends to do everything himself. It is always difficult to become the boss of people who have been your peers.” The candidate thinks the section will accept him as their supervisor and that he will work very hard to create a team atmosphere. (No one else in the section applied for the position.)

Which applicant do you recommend for the job? Remember to hire a Level 3 supervisor in the Staffing decision input screen or if option 4 is selected, remember to promote an employee to Level 3. This is in addition to the people that you will be hiring and promoting this decision period.

1. Female, age 30, 4-year business degree
2. Male, age 35, 2-year technical degree
3. Male, age 55, minority, retired military officer
4. Male, age 30, technician with no degree

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in hiring someone without supervisory experience?
- What risks does an employer face in hiring someone based on affirmative action concerns?
- What risks does an employer face by ignoring affirmative action concerns?
- Is it difficult for you to weigh affirmative action concerns with experience and proven abilities? How would you balance these concerns?
- What choice did you make? Why?

Incident 5: Performance Appraisal

Summary

The CEO has instructed you to recommend a system of performance appraisal for all supervisors and managers. Four appraisal methods and four appraisal scales are available.

Full Text

The CEO has instructed you to recommend a system of performance appraisal for all supervisors and managers. There are two selections you must make. First, select who will conduct the appraisals, and then, select the appraisal method.

Appraiser

1. Supervisor
2. Supervisor and subordinates
3. Supervisor and self
4. Supervisor, subordinates, and self

Appraisal Method

1. **Psychological Appraisals:** A psychologist conducts a variety of tests and interviews with employees. The results can then be used to analyze major components of employees' performance like leadership skills, cognitive abilities, and personality traits and to make decisions about job roles and work environments. This method focuses more on future potential than past performance.
2. **Critical Incident Appraisals:** This approach focuses on key behaviors by the employee that led to either good or poor performance on a given task. The appraiser notes relevant situations (critical incidents) as they occur, recording a summary of what happened and then meeting periodically with the employee to review these incidents and discuss how to improve moving forward.
3. **Management By Objectives (MBO):** In this method, the employee and appraiser work together to develop goals in line with the company's objectives and routinely follow up on progress. A key aspect of MBO is the use of continuous feedback on the agreed-upon goals and their results, which is also supplemented by more formal review meetings.
4. **Behaviorally Anchored Rating Scales (BARS):** Rater selects statements that best match the employee's behavior, with different behaviors having different scores. For example, "Supervisor has a daily schedule prepared before the shift begins and assigns work within the first 15 minutes of the workday" would have a high rating. The following example would have a very low rating: "Supervisor has no daily schedule prepared and assigns work 45 minutes after the shift begins."

Choose a single Appraiser and Method below.

Appraiser

1. Supervisor
2. Supervisor and subordinates
3. Supervisor and self
4. Supervisor, subordinates, and self

Method

1. Graphic Rating Scale
2. Critical Incident Appraisals
3. Management By Objectives
4. Behaviorally Anchored Rating Scales (BARS)

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in changing or creating a performance appraisal system for current employees?

- **What concerns will employees face as a result of your selection? How will you allay their concerns?**
- **What is the best way to create a performance appraisal system? Should you ask employees for their suggestions?**
- **What choice did you make? Why?**

Incident 6: Sexual Harassment

Summary

There is disagreement among supervisors regarding the current sexual harassment policy. Some argue that management is needlessly dictating rules while others believe that things could have been better handled in the past and that more could be done to ensure a good work environment. What changes should be made if any?

Full Text

The company has had a sexual harassment policy in place for several years. The policy has a standard definition of sexual harassment, plus a statement that says, “Any employee found guilty of sexual harassment will be subject to discipline, up to and including termination.” Three years ago, the company hired an outside training consultant to present a three-hour program to all employees on the policy. The training included definitions of sexual harassment, the responsibilities of the company to prevent sexual harassment, and information on procedures an employee should follow if anyone feels he or she has been sexually harassed. Since that time, new employees have been given the policy during orientation, and once a year, a video that was purchased for the employee training program is shown as part of a “bag-lunch learning” session.

There have been a few incidents of sexual harassment over the last year. In your opinion, some of them could have been handled better by supervisors and managers, but you don’t think there’s any major risk to the company right now. At a recent staff meeting, there was significant disagreement among several of your supervisors. One in particular argued that the company needs to do more, that there is a lot more harassment going on than has been reported. Several others argued that “enough is enough, we’re sick of the HR police dictating every rule that has to be followed.” They argue, “Most of these incidents are just normal ‘boys will be boys’ type things.”

Select your response from those given below. You may choose only one.

1. Do nothing. (Cost: none)
2. Distribute a copy of the current policy to all employees at a special meeting. (Cost: \$1,000)
3. Develop a “zero tolerance” policy, and distribute it. (Cost: \$2,000)
4. Develop a “zero tolerance” policy, and present it in department meetings. (Cost: \$3,000)
5. Develop “zero tolerance” policy, and hire a consultant to develop and present a new training program. (Cost: \$10,000)

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face by leaving the existing sexual harassment policy in place?
- What risks does an employer face in strengthening the sexual harassment policy? What will a new policy not accomplish?
- What is the strongest argument for and against changing the policy as described in this situation?
- What choice did you make? Why?

Incident 7: Compensation Planning

Summary

You have been concerned for quite some time about the turnover rate in your firm. While it has improved somewhat, you believe that the cost of turnover is too high, especially the cost of losing experienced employees. The CEO has indicated there is a 50% chance budget funds for a new compensation plan would be available next year. Eight compensation plans are available for study. Select one plan at a cost of \$3,000.

Full Text

You have just finished reading an article in a personnel journal about compensation plans. The turnover rate in your company is too high, considering the cost of losing experienced employees. The CEO has indicated there is a 50% chance the budget for a new compensation plan would be available next year. You must decide which compensation plan warrants further study by your HR staff. Each study costs \$3,000—automatically charged to your budget under the “Employee Relations / Other” category.

- 1. Job Evaluation:** A system based on the relative worth of jobs. Many feel that higher-level employees perform sufficiently different work and should be paid at a higher rate. This may be contributing to an unspoken morale problem. This system may help protect the company against discrimination claims, as employees would receive equal pay for equal work.
- 2. Performance-Based Pay System:** Standards would be established for all jobs that could have standards and employees would be paid a base hourly wage plus a bonus if their productivity exceeds the standard.
- 3. Team Incentive Plan:** The workforce would be grouped into as many teams as practicable and standards set for the team. Workers would receive a base hourly wage plus a bonus based on the team’s performance.
- 4. Piece Rate System:** Piece rates would be established for all jobs that could have a piece rate determined, and all workers would be paid on each unit produced. If it were a service job, it would be paid on such items as orders taken, calls made, etc.
- 5. Profit Sharing or Gain Sharing:** A goal would be established monthly, quarterly, or annually, and workers would share in profits if goals are exceeded. This would be an organizational-wide plan; that is, all employees of the company would participate.
- 6. Employee Stock Ownership Plan (ESOP):** Similar to profit or gain sharing, employees would be paid their bonus with company stock. Employees would feel like they were part of the company owners of the business and could help prevent hostile takeovers (Employees would be unlikely to vote the sale of “their” company). (If non-profit, this option is not available.)
- 7. Guaranteed Cost of Living Adjustment (COLA):** All employees would have their wages increased each year according to the local cost of living increase, based either on an equal percentage or equal dollars. This is a clause in many union contracts, which helps employees feel the company is doing its best to maintain an acceptable standard of living.
- 8. Merit Increases:** All employees would receive an annual performance appraisal and receive a merit increase if deserved.

You may only choose one response from the options given below. If the one you choose pertains only to production workers, you may assume that another system would also be instituted for management.

- 1. Job Evaluation**
- 2. Performance-Based Pay System**
- 3. Team Incentive Plan**
- 4. Piece Rate System**
- 5. Profit Sharing or Gain Sharing**

6. Employee Stock Ownership Plan (ESOP)
7. Guaranteed Cost of Living Adjustment (COLA)
8. Merit Increases
9. Pass on this project at this time

Discussion Questions for Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face by designing a new employee compensation plan?
- What risks are there in beginning a merit-based compensation plan?
- What will an employee compensation plan not accomplish?
- What is the best overall type of employee compensation for a company with varied positions and job responsibilities?
- What type of employee compensation is most fair? What type will benefit the employees most? What type will benefit the company most?
- What choice did you make? Why?

Incident 8: Self-Managed Work Teams

Summary

The CEO has asked you to make a recommendation concerning the use of self-managed work teams in your firm. If the concept works, productivity gains and/or better quality of the product or service may be expected. If the concept does not work, morale can suffer due to the “failed” experiment. One member of your HR staff claims that the HR department function will be diminished, as would the function of supervisors and managers who would give up power and control. Another member of your staff feels it is the “wave of the future.” Your recommendation to the CEO may include any or all of the following. There will be a \$10,000 fee for expenses related to launching the program.

Full Text

The CEO has asked you to make a recommendation concerning the use of self-managed work teams in your company. Work teams consist of 8 to 15 members who are responsible for producing a complete product (or component of a product) or for managing a project or service. As a team progresses, it is given increased authority to operate under its own direction. If the concept works, productivity gains and/or better quality of the product or service may be expected. If the concept does not work, morale can suffer due to the “failed” experiment. One member of your HR staff has voiced a strong objection to the program. He claims that the HR department function would be diminished, as would the role of supervisors and managers who would give up power and control. Another member of your staff feels it is the “wave of the future” and that the program must be adopted throughout the company immediately. If you want to create work teams, select the key policy(s) that you want to implement. Your recommendation to the CEO may include one or more of the following options. If you establish work teams, you will be charged \$10,000 for related expenses of launching the program; this one-time cost will be automatically charged to your budget under the “Employee Relations / Other” category. If you do not want to create self-managed work teams at this time, do not select any options.

1. Include aptitude testing for teams.
2. Teams can hire workers.
3. Teams can schedule work.
4. Teams decide how to do the job.
5. Teams self-appraise and make compensation recommendations.
6. Teams are completely self-directing without an assigned leader.
7. Teams can fire non-productive members.

Discussion for Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in allowing self-managed work teams?
- What risks does an employer face in not developing self-managed work teams?
- What will the formation of self-managed work teams not accomplish?
- What sort of jobs/positions most benefit from a self-managed work team approach?
- Are there some jobs/positions that would not benefit from a self-managed work team approach?
- What choice(s) did you make? Why?

Incident 9: Employee Health and Wellness Proposals

Summary

Several proposals for employee health and wellness have been submitted recently: a varied wellness program, a program focused on mental health, and a program concentrated solely on substance abuse. You may select any number of the proposals. Costs will be charged to your budget next quarter only; afterwards, the company will take them on.

Full Text

Several proposals have been submitted recently:

- A professor of health and wellness at the local university could provide a wellness program for your firm. The program would include seminars in smoking cessation, weight loss, exercise, back problem management, and stress management.
- A local hospital could run a mental health program, focusing on events and behaviors related to mental health: substance abuse, compulsive gambling, family and marital issues, legal problems, personal financial difficulties, and job/career problems.
- The operations manager has written a memo requesting that a substance abuse program be initiated. He estimates that at least 50% of the absentees are the result of substance abuse.

All of these programs are expected to reduce absentees and have a positive impact on grievances. You may accept zero or more of the proposals. Any costs will be charged to the “Employee Relations / Other” budget category next quarter. After that, the cost will be assumed by the company.

1. Wellness Program (Cost: 0.08% of payroll)
2. Mental Health Program (Cost: 0.11% of payroll)
3. Substance Abuse Program (Cost: 0.15% of payroll)

Discussion for Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in initiating an employee health and wellness program?
- What risks does the company take in not initiating an employee health and wellness program?
- What will an employee health and wellness program not accomplish?
- What is the greatest benefit to the company from beginning an employee health and wellness program?
- What choice(s) did you make? Why?

Incident 10: Safety Issues

Summary

You have just returned from a top-level staff meeting at which safety issues were the prevailing topic. A neighboring firm has just received stiff fines due to several safety infractions, even though it had an on-going safety program. The CEO wants your staff to discuss and select from the following proposals.

Full Text

You have just returned from a top-level staff meeting at which safety issues were the prevailing topic. A neighboring company has just received stiff fines because of several safety infractions, even though it had an ongoing safety program. Your CEO is concerned that the company may incur penalties also and has requested the HR staff discuss and select one option from the following proposals:

- Hire a consulting company to thoroughly inspect your work facilities and to prepare a report on any unsafe conditions, unsafe work practices, and health hazards (such as computer display terminal radiation and ergonomic problems). The report could help keep work areas in compliance with safety regulations. Although the company has an informal system for keeping up with such matters, an outside, trained inspection team may be able to spot problems not noticed by company employees. There would be a one time cost.
- Hire a full-time safety specialist. The CEO suggests that the specialist report to the HR manager instead of the operations manager in order to maintain objectivity. The specialist's job would be to maintain safe working practices in the facility, to prevent occupational disabilities, and to conduct workshops on such topics as safe work practices, safety regulations, ergonomic issues, and preventative safety management. The CEO stated that she would assume the cost of the position if you can budget for the start-up costs.
- Establish a Participative Safety Management Program. Voluntary teams would be formed in all work areas where safety is, or could be, an issue. The teams would look for safety problems, make suggestions for corrective action, and encourage safe work practices by everyone in their work area. (Although you may already have an employee participation program, its primary responsibility is for quality and productivity.) While there would be some ongoing costs of such a program, you will only be charged for the start-up costs—primarily for lost time of those who would be trained to operate as a safety team.
- Hire a retired safety engineer that a staff member knows to make an inspection of your facilities and write a report. While this tactic may or may not actually improve safety, the written report could be used as a defense in the event of a problem with safety regulations.
- Do nothing at this time.

Your staff feel your facility is a safe workplace and that no further action is required now. You may select only one proposal from those given below. Any cost will be automatically charged against your budget as the "Incident Expenses" item under the "Employee Relations / Other" category.

1. Have a consulting company inspect your facilities. (Cost: \$8,000)
2. Hire a full-time safety specialist. (Cost: \$15,000)
3. Establish a Participative Safety Management Program. (Cost: \$8,000)
4. Hire a retired safety engineer to inspect your facilities. (Cost: \$2,000)
5. Do nothing.

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face by not keeping up with safety regulations?
- What risks does an employer face in creating an employee safety program?
- What will an employee safety program not accomplish?

- What is the greatest benefit to a company of having an on-going employee safety program?
- What choice did you make? Why?

Incident 11: Exempt Employees

Summary

Several employees have complained that while some are getting overtime pay, others performing the same work are not. A review of the various jobs at Level 2 indicates that some of the jobs have been classified as non-exempt, while others are classified as exempt for overtime pay. When you check the job descriptions and examine the jobs based on the fair labor guidelines for exempt status, you realize that all of these jobs should be classified as non-exempt. You also calculate that several employees would be owed approximately \$10,000 in overtime pay for the last year alone. What should you do?

Full Text

A review of the various jobs at Level 2 indicates that some of the jobs are classified as non-exempt (eligible for overtime pay), while others are classified as exempt. In the last few months, you've received several complaints from individuals in some of the positions classified as "exempt" that they've been working a significant amount of overtime. They've complained that some colleagues in other departments received compensation for the overtime they work. When you check the job descriptions of some of those who are complaining and examine the regulatory guidelines for exempt status, you decide that the jobs should be classified as non-exempt. However, you also calculate that the employees would be owed approximately \$10,000 in overtime pay for the last year alone. You see several options for how to proceed:

1. Reclassify the positions retroactively: Pay the employees \$10,000 for overtime worked in the past year.
2. Reclassify the positions going forward: Tell the employees they will now start getting overtime pay for hours over 40 per week.
3. Keep the positions "exempt": Tell the employees that as Level 2 employees, they are not considered hourly employees. As supervisors, they have greater responsibilities as well as rights and privileges that make their "salaried" positions exempt from overtime pay.
4. Ignore the complaints: They'll go away or start complaining about something else next week.

What should you do? You may select only one option from those given below.

1. Reclassify the positions, and pay \$10,000 in back overtime.
2. Reclassify the positions, and pay overtime going forward.
3. Keep the positions exempt.
4. Ignore the complaints.

Discussion for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in having different overtime policies for similar jobs?
- What risks does an employer face in requiring overtime work from salaried workers without providing compensation?
- What compensation can be offered in place of overtime pay?
- What message does overtime exemption send to employees?
- What choice did you make? Why?

Incident 12: References–How much do I say?

Summary

A former employee of your firm has applied for a position with a large manufacturing firm in town. The policy you have adopted for requests for work reference stipulates that former employee information shall only include position information, dates of employment, and salary verification if the caller provided that information. A caller is requesting information about a troublesome former employee with a long record of various infractions who was terminated for cause. There is much detail you could offer. How much information should you give to the prospective employer?

Full Text

When your phone rang right after lunch, the Caller ID showed it was Amy Johns, HR Director for a large manufacturing company in town. She is a professional colleague you have met at several local SHRM (Society for Human Resources Management) meetings. She's calling because Thomas Fischer, a former employee of your company, has applied for a position with her company. When you became HR Director, you instituted a policy on recommendations similar to that in your previous company. Requests for references would be honored by providing position information, dates of employment, and verifying salary information if the caller provided it. But in this case, it would certainly be easy to provide a lot more information. The minute Thomas Fischer's name was mentioned, the memories of a tough six weeks you experienced several months ago came storming back. Thomas Fischer had worked in your company's accounting department for about three years. His performance was best described as "erratic." He was a good employee at times, but at other times his performance was clearly below expectations. The biggest problem was his inability to get along with co-workers; several times, he was given verbal or written warnings over arguments he started with colleagues or managers in other departments. After a final incident a few months ago, Thomas was terminated for cause. He responded with an angry outburst, took a swing at his boss, missed, and stormed out saying, "You haven't heard the last of me." A couple of other employees reported seeing him outside the building a few days later, but nothing else happened.

After some professional conversation, Amy asks for information on Thomas Fischer. What will you do? You may select only one option from those given below.

1. Verify Thomas's position, dates of employment, and salary.
2. Verify the information, and add a non-specific "not eligible for rehire."
3. Tell Amy that Thomas was "terminated for poor performance."
4. Give Amy the whole story.

Discussion Questions for Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in supplying detailed employment history of a former employee to a prospective employer?
- What risks does an employer face in being less than open in a case like this?
- What outcome may result from a positive work reference? ...from a negative work reference?
- What, if any, is the ongoing obligation of an employer toward a former employee?
- What choice did you make? Why?

Incident 13: Harassment vs. Lying Dilemma

Summary

An employee, Chris, tells you that her supervisor, Ted, propositioned her. When she refused, her work assignments changed dramatically, and he gave her a below average performance review. Chris's performance is actually above average, and another employee can support Chris's sexual harassment claims. Firm policy for sexual harassment says, "Any employee found guilty of sexual harassment will be subject to discipline, up to and including termination." Ted comes to your office next, claiming that Chris lied on her work application. He wants you to initiate an immediate termination of Chris' employment. What will you do?

Full Text

Mondays often start with tough situations, but this one looks like it's going to be rough. Just a few minutes after arriving in your office, Chris Daniels appeared at your door asking to speak to you immediately. Chris is a relatively recent hire and, based on your assessment, is a sure fire top performer. But the performance appraisal that was filed by her supervisor last week didn't bear that out—and that's exactly what Chris wants to talk about. After a few minutes of small talk, Chris hesitantly tells you that her supervisor, Ted Andrews, propositioned her. He promised her a favorable review and better work assignments if she would accompany him on a three-day technical conference. When she refused, her work assignments changed dramatically, and a couple weeks later, he gave her a below average performance review. You collect a few more details from Chris and then promise to investigate and get back to her.

It doesn't take long to collect some solid information that Chris's performance is actually above average and that another employee overheard enough of the supervisor's proposition to support Chris's charges. A quick check of the company policy shows that the standard definitions of "quid pro quo" and "hostile environment" are provided plus a statement that says: "Any employee found guilty of sexual harassment will be subject to discipline, up to and including termination."

Before you can schedule a meeting with Chris's supervisor, he appears in your office. You let him say his piece before you confront him with the sexual harassment charges, and he presents another copy of Chris's below average review plus a copy of her application. He tells you that Chris lied on her application when she claimed to have earned her college degree. She, in fact, is six credits short of graduation. He wants you to initiate an immediate termination of Chris for "lying on her application."

1. Terminate Chris.
2. Terminate Ted.
3. Terminate both Chris and Ted.
4. Written warning to Chris.
5. Written warning to Ted.
6. Written warning to both Chris and Ted.
7. Terminate Chris. Written warning to Ted.
8. Terminate Ted. Written warning to Chris.

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in firing an employee over a sexual harassment infringement?
- What risks does an employer face in firing an employee for dishonest statements on his/her work application?
- What will a warning to both employees accomplish in a case like this? What will it fail to accomplish?
- What is the best solution in a case like this?
- What choice did you make? Why?

Incident 14: Promotion Decisions

Summary

Two employees are up for promotion. The first employee, Margaret, has a history of chemical dependency but has undergone treatment and has been okay for a year. She believes that she should rarely stay late at the office or participate in weekend meetings, explaining that her health comes first. The second employee, Beth, strongly believes that she should only rarely stay late at the office or participate in weekend meetings because her family comes first. The viewpoints of both employees have not affected their work performance yet but could become problematic in a more demanding role. What do you think you should do?

Full Text

MEMORANDUM TO: Human Resources Director
FROM: Mark Taylor, Department Head
SUBJECT: Promotions of Margaret Adams and Beth Taylor

We are at the point where we must make a decision on the promotions of Margaret Adams and Beth Taylor, members of our administrative staff. They are both very competent employees, and I am convinced that they are capable of handling even more responsibility.

Margaret's file indicates that she has history of chemical dependency but has had treatment and has been OK for a year. She is not currently enrolled in any treatment program. She believes that she should very rarely stay late at the office or participate in weekend meetings. She believes that her first duty is to her health and that she should manage her time accordingly.

In Beth's case, I am not altogether certain that she is willing to subordinate time with her family to time on the job, to the extent that may be required. I have had the opportunity to explore with her the general problem of family vs. job, and she strongly believes that she should very rarely stay late at the office or participate in weekend meetings. She believes that her first duty is to her family and that she should manage her time accordingly. These viewpoints have not affected their performance in the past, but it could be a problem in a more demanding role.

What do you think we should do?

1. Promote Margaret only.
2. Promote Beth only.
3. Promote both Margaret and Beth.
4. Promote neither Margaret nor Beth.

Discussion Questions for Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks does an employer face in promoting both employees?
- What risks does an employer face in promoting only one employee?
- What will a job promotion not accomplish in this case?
- What risk does an employer take in expecting overtime work from upper level employees?
- Is there any risk to the employer if overtime work is a requirement stipulated in a job description?
- What choice did you make? Why?

Incident 15: Wage Negotiations

Summary

The union that represents your Level 1 employees has approached you about negotiating a contract for the next year. They are demanding a \$1.20 increase in the hourly wage rate for Level 1 workers. The negotiator warns that employees are ready to strike if their demands are not met. You must decide if a change in wages is appropriate, and if so, how much. Any increase in wages you select here must be matched by a Level 1 wage increase in your Wages decision. Promising, but not actually delivering on a wage increase will have serious consequences.

Full Text

Workers Local 54, the union that represents your Level 1 employees, has approached you about negotiating a contract for the next year. It is demanding a \$1.20 increase in the hourly wage rate for Level 1 workers. The union justifies the increase by claiming improved productivity since the last contract was negotiated; it also claims that an increase will allow wages to keep pace with inflation. The negotiator warns that employees are ready to strike if their demands are not met. You must decide if a change in wages is appropriate, and if so, how much of a change. Any increase in wages you select here must be matched by an increase in your Wages decision for Level 1. Promising but not actually delivering on a wage increase will have serious consequences. How much of a change do you want to promise?

1. A \$0.20 decrease.
2. No change.
3. A \$0.40 increase.
4. A \$0.80 increase.
5. A \$1.20 increase.
6. A \$1.50 increase.

Discussion for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risk(s), if any, does an employer face by ignoring a wage request by the employee union?
- What is likely to occur if an employer meets a wage increase request with no increase or a decrease in pay?
- How important are wages to employee morale?
- Can wages affect productivity? If so, how?
- What might occur if an employer makes a wage increase promise but does not follow through?
- What choice did you make? Why?

Incident 16: Collective Bargaining

Summary

Management is preparing to meet with the union that represents Level 1 employees at your firm. The CEO has asked for you to make recommendations on the most important issues that need to be addressed in the upcoming contract negotiations. While all the choices may be desirable from the workers' perspective, budget limitations and resource constraints prevent the firm from doing everything in the list. You need to evaluate your firm's situation, and recommend focusing on those issues that will prove most beneficial to both labor and management. Select zero or more options.

Full Text

Management is preparing to meet with Workers Local 54, the union that represents Level 1 employees at your company. The CEO has asked for you to make recommendations on the most important issues that need to be addressed in the upcoming contract negotiations. While all the choices may be desirable from the workers' perspective, budget limitations and resource constraints prevent the company from doing everything in the list. You need to evaluate your company's situation, and recommend focusing on those issues that will prove most beneficial to both labor and management.

1. **Wage increase:** While the union is pressing for higher wages, you need to consider current Level 1 pay relative to industry average, worker productivity, and budget constraints. Choosing this option means that you recommend a wage increase for Level 1 workers.
2. **Increased benefits:** Employees consider their benefits package an important part of their compensation. You must consider current benefits relative to other companies as well as the significant impact an increase would have on the budget and unit costs. Also keep in mind that increasing benefits will affect all workers, not just Level 1 employees. Choosing this option indicates that you recommend increasing benefits for all employees.
3. **Job protection:** The union is asking for assurance that the company will not layoff Level 1 employees in a downturn or replace them with non-union workers, such as part-timers. Agreeing to this means that reductions to Level 1 workforce would have to come through attrition, not layoffs. If production remains high, there could be no cost to the company, while employees may be more productive without the worry of being laid off.
4. **Better training:** Workers think management should be putting more effort into training Level 1 employees. The union says spending on employee development and safety training would benefit the company by improving productivity. You will need to consider current levels of training and budget constraints. Choosing this option means you recommend increases in training.
5. **Limiting overtime:** You must pay overtime to employees who work more than 40 hours a week but cannot require employees to work more than 80 hours in a week. The union wants to reduce the upper limit to 60 hours for Level 1 employees. Agreeing to the new limit means that under some circumstances, you may have to hire more employees instead of requiring your Level 1 workers to work overtime to meet production quotas.

Select zero or more options for your recommendation. Note that your choices here will have no impact on your current decisions.

1. Wage increase.
2. Increased benefits.
3. Job protection.
4. Better training.
5. Limit overtime.

Discussion for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks, if any, does an employer face in not addressing union requests?
- What risks, if any, will an employer face by not implementing agreed upon changes?

- **What purpose does a union serve in the workplace?**
- **Have you ever been a union member? If so, as a worker, what advantage(s) did the union provide for you, if any? What disadvantage(s) did union membership bring, if any?**
- **What advantage(s) does collective bargaining bring?**
- **What choice(s) did you make? Why?**

Incident 17: Crisis Management

Summary

The CEO is worried that the company may not be prepared to respond to crises such as technology failure, a strike by workers, and violence in the workplace. The CEO has asked for your recommendations on how to handle a crisis, including short-term emergency response and longer-term recovery. Discuss the following proposals with your staff, and make your recommendation.

Full Text

Recently, natural disasters have been in the news, and the CEO is worried that the company may not be prepared to respond to a crisis. Besides the potential of a natural disaster, other problems she is concerned about are technology failure, a strike by workers, and violence in the workplace. The CEO has asked for your recommendations on how to handle a crisis, including short-term emergency response and longer-term recovery. Discuss the following proposals with your staff, and make your recommendation.

1. Disaster recovery plan: The plan will identify potential crisis situations and define employee responsibilities in a crisis.
2. Periodic preparedness drills: The drills will allow employees to practice evacuation procedures and to test disaster plans. The quarterly drills may reduce productivity somewhat but would pay off in the event of an emergency.
3. Emergency work environment: Research options for a backup site in the event of a disaster, enabling your recovery staff to complete their work.
4. Training for supervisors and managers: Supervisors must be able to identify and respond to any number of crises. They will need special training to prepare them for emergencies.
5. Backup of critical documents: A disaster may destroy important records required for recovery, so having a regular backup procedure for critical documents is essential for a successful recovery.
6. Emergency benefits policy: In the case of a widespread disaster, employees may lose their homes and means of transportation. Emergency benefits can help personnel continue working while they are recovering from their loss.

Select zero or more options.

1. Disaster Recovery Plan (Cost: \$10,000)
2. Preparedness Drills (Cost: reduced productivity)
3. Emergency Work Environment (Cost: \$5,000)
4. Supervisor Training (Cost: \$15,000)
5. Backup Critical Documents (Cost: \$20,000)
6. Emergency Benefits (Cost: depends on crisis)

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What risks, if any, does an employer experience by ignoring implementation of safety measures?
- What advantage(s) will an employer gain by having safety precautions in place?
- What safety measures does your employer have in place?
- Are you aware of safety precautions that are in place at this college? If not, how will you find out what they are?
- Have you been in a crisis situation and experienced a good response due to safety precautions that were in place? If so, what were they? How did the precautions avert further problems/disaster?
- What choice(s) did you make? Why?

Incident 18: Health Care Law Changes

Summary

The government has recently changed the law regarding health insurance benefits, and your company will need to comply with the changes. For this incident, you will need to evaluate your health care coverage and bring it into compliance with the law. If you do not provide benefits of at least the Tier 3 Health Insurance plan, along with the Prescription Drug Plan, you will see a one-time charge against your budget next quarter. The charge will be based on your current benefit and wage decisions and will be shown on the budget forecast. What will your firm do?

Full Text

The government has recently changed the law regarding health insurance benefits, and your company will need to comply with the changes. The law requires that all full-time employees have affordable and adequate health insurance coverage. Since there is no employee contribution toward the health care benefits you are already providing, the coverage passes the “affordable” test. However, the law also requires that coverage be at least the equivalent of the Tier 3 plan and that a

Prescription Drug Plan be included. If you do not provide adequate coverage, your company will be fined. The penalty for inadequate coverage is \$3,000 per year for each employee who opts out of the company plan and qualifies for government subsidies to purchase coverage. It is not known what percentage of employees will opt out, but health care consultants have estimated that 65% would do so if the company offered the Tier 1 plan at the wages you started with at the beginning of the simulation. That percentage should be lower at higher wage levels and better health care benefits.

For this incident, you will need to go to the Benefits decision page, evaluate your health care coverage, and bring it into compliance with the law. If you do not provide benefits of at least the Tier 3 Health Insurance along with the Prescription Drug Plan, you will see a one-time charge against your budget next quarter. The charge will be based on your current benefit and wage decisions. The budget bar accounts for the fine under the “Employee Relations” category.

1. Comply with the law.
2. Pay the fine (Cost: varies; see the budget bar)

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- Government regulates businesses in many ways that have an effect on human resources management. What are some of those areas of regulation?
- Changes in regulations can create uncertainty in an organization. How can management deal with the uncertainty?
- The penalty in the incident is \$3,000 per year for each employee that opts out of the company health care plan and receives a government subsidy. What is the quarterly fine if you have 600 employees and you have to pay a penalty for half of them?

Incident 19: Drug Testing

Summary

The CEO of your organization is concerned that substance abuse is negatively affecting employee safety, absentee rates, productivity, and turnover. Decide when to test for drugs and alcohol. The cost for each test is \$30, with the total cost dependent on the choices made, quarterly hires, accident rates, etc. If random testing is chosen, 10% of employees will be tested each quarter.

The total cost for testing will be charged against the budget next quarter only. In every period, it will add to unit cost of production. Select zero or more options.

Full Text

The CEO of your organization is concerned that abuse of alcohol and drugs is affecting employee safety on the job. Research indicates that use of opioids has increased in recent years, while consumption of alcohol continues to be a problem. The trend toward legalization of marijuana may lead to greater use by workers, possibly affecting job performance. In addition to safety issues, abuse of alcohol and drugs has been associated with increased absentee rates, lower productivity, and higher turnover.

Testing most commonly includes checks for alcohol, marijuana, methamphetamine, cocaine, and opioids. The HR department will need to develop a testing policy which reduces abuse without conflicting with employment law. Some policies may constitute gathering medical information about an applicant with disabilities and be in violation of health care privacy laws.

For this incident, you must decide when to test: at the final interview for new hires prior to a background check, with the right to refuse; after an offer of employment has been made; after an accident occurs in the workplace; and/or random testing. The cost for each test is \$30, with the total cost dependent on the choices made, quarterly hires, accident rates, etc. If random testing is chosen, 10% of employees will be tested each quarter. The total cost for testing will be charged against the budget next quarter only. In every period, it will add to unit cost of production.

Choose zero or more of the following times to test for drugs. If none are chosen, no drug testing will be done.

1. Final Interview (cost varies with number of hires)
2. Post-offer (cost varies with number of hires)
3. Post-accident (cost varies with accident rate)
4. Random Testing (cost varies with number of employees)

Discussion Questions for Teams

Invite an open discussion, asking students to share their incident selection and resulting message.

- What is the purpose of drug testing?
- What benefits can be gained by testing? What are the risks?
- Identify three different methods of testing for drugs. Why might you choose one over another?
- Do employers have the right to regulate employee behavior outside of working hours?
- What legal risks do employers face if they are overzealous with drug testing?
- At \$30 per test, what is the quarterly cost of testing all new hires in an organization with 600 employees and quarterly turnover of 9%?
- What choice(s) did you make? Why?

Incident 20: Workplace Accommodations

Summary

Your organization provides the legally required accommodations for workers with disabilities, but going beyond the minimum the law requires by creating a culture of accommodation could help attract and retain valuable employees. You have options to improve accommodations as well as educate employees about identifying and accommodating disabilities.

Full Text

Accommodations for workers with disabilities are required by law, and studies have shown that they can also help attract and retain valuable employees. Your organization made changes to its facilities to comply with legal requirements years ago. But creating a culture of accommodation for employees with disabilities goes well beyond simple changes to the physical workspace and adherence to the law. You now have the opportunity to improve accommodations, increase awareness within the organization about the issue, and educate employees about identifying and accommodating disabilities.

One of the problems your organization has in accommodating for disabilities is consistency. Developing a written policy would help supervisors identify reasonable accommodations and outline procedures to follow for implementing them. Managers and workers could refer to the policy in case of uncertainty, and its availability would help increase awareness in the workplace. A written policy would also serve to document efforts on the part of management to adhere to legal requirements. Estimated cost for creating the policy and incorporating it into the employee manual is \$1,000.

While the physical facilities were modified to adhere to the law, an evaluation of the workspace would help to identify areas that have fallen out of compliance and areas in need of improvement. If you do this, a consultant will perform the evaluation and report on needed changes. The cost for the evaluation and updates is expected to be \$5,000.

The employees themselves are key to creating a culture of accommodation for disabilities. While applicants cannot be tested for disabilities before hiring, by identifying disabilities in new hires and making changes to the training of new employees, workers that need accommodations can be identified early on and become more productive quickly. Not all disabilities are physical or apparent, so adding a module on disabilities to the supervisor and manager training will help them respond to requests for accommodation. An update of training materials to include a module on disabilities will cost \$3,000.

You may choose zero or more of the options. The one-time costs will be applied against your budget next quarter.

1. Develop a written policy on disabilities. (Cost: \$1,000)
2. Improve physical facilities. (Cost: \$5,000)
3. Modify hiring procedures to identify employees with disabilities. (Cost: none)
4. Add a disabilities module to training programs. (Cost: \$3,000)

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What constitutes a disability under the law?
- Can an employer reject a job applicant with obvious disabilities?
- What is a reasonable accommodation?
- Identify three accommodations in the physical workspace required by law.
- How might accommodating disabilities improve productivity and morale in an organization?
- What choice(s) did you make? Why?

Incident 21: Diverse Hiring Pipeline

Summary

A hiring pipeline encompasses the various stages of the hiring process, from the initial job posting to the eventual extension of an offer or rejection, and all that goes into the decisions made and methods used along the way. The CEO has strongly recommended that the HR department reevaluate its hiring pipeline with the goal of further diversifying the company's workforce; select from a variety of options to aid in this effort.

Full Text

A hiring pipeline encompasses the various stages of the hiring process, from the initial job posting to the eventual extension of an offer or rejection, and all that goes into the decisions made and methods used along the way. Since your company has historically struggled to recruit diverse candidates as well as to keep them (and keep them satisfied) once hired, the CEO has strongly recommended that the HR department reevaluate its hiring pipeline with the goal of further diversifying the company's workforce.

Beyond simple legal compliance, recruiting and maintaining a diverse group of personnel can introduce new ideas, perspectives, and methods to your organization, leading to positive outcomes like increased productivity and morale. Taking steps now to intentionally reassess aspects of the hiring pipeline can also pay dividends in the long run by making your company more appealing to a wide variety of new candidates and helping you maintain a high-quality pool of potential talent. This in turn allows the hiring process to move more quickly and smoothly once new positions become available.

Choose one or more of the options below to develop a more robust hiring pipeline to aid in maintaining a more diverse workforce.

1. Work with an outside Diversity, Equity, and Inclusion (DEI) consultant to write job descriptions with more inclusive language and organize diverse interview panels. (Cost: \$5,000)
2. Initiate relationships with institutions like historically Black colleges and universities (HBCUs), professional associations for minoritized groups, LGBTQ+ organizations, etc. Provide a stipend for your employees to participate in events with these groups. (Cost: \$10,000)
3. Offer referral bonuses to current employees, asking specifically for suggestions of candidates from underrepresented groups. (Cost: \$10,000)
4. Organize an unconscious bias training program to help build a more welcoming company culture for potential and new employees. (Cost: \$5,000)
5. Implement an AI-driven hiring management system to conduct blind screenings of candidates. This system has been shown to achieve a more objective approach to the early stages of the hiring process. (Cost: \$12,000)

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What are the potential long-term advantages of improving your hiring pipeline?
- What challenges or obstacles might come up in the implementation of these initiatives?
- What are the risks and benefits of using AI in the hiring process?
- What other steps might you take to create a more diverse hiring pipeline beyond the ones offered here?
- What choice(s) did you make? Why?

Incident 22: Mental Health Programs

Summary

It has recently come to your attention that some supervisors have been speaking dismissively about employees' mental health struggles. Employees are concerned that mental health is not being taken seriously. Select from the available options to help change the company culture toward a more mentally healthy workplace.

Full Text

Recently, some conversations among supervisors at your company have come to your attention. A couple of supervisors were speaking dismissively of employees who have had to miss time for mental health reasons. Others joined in the conversation and complained that certain members of their teams are not able to take the pressure of the job. When some employees overheard this, they came to the HR department and expressed concern that mental health is not being taken seriously in the workplace.

You acknowledge and share their concern about the conversation among the supervisors. You recognize that the psychological health and safety of employees is important and that ignoring mental health issues can have negative personal effects and financial effects on the company. You take some time to investigate further and read up on mental health in the workplace, using resources relevant to your location (e.g., Mental Health Commission of Canada, Mental Health America, UK Wellbeing and Mental Health Action Group, European Network for Workplace Health Promotion). You are determined to change the culture and work toward creating a mentally healthy workplace. You may choose one option. The one-time cost will be applied against your budget next quarter.

1. Hold a town hall-style meeting on mental health with a guest speaker. Provide an opportunity to reduce the stigma and get employees comfortable talking about mental health. (Cost: \$3,000).
2. Hire a part-time on-site counseling psychologist to support employees. Employees can use their breaks to book time with the counselor during the day. (Cost: \$6,000 – cost will be absorbed by the company after one quarter)
3. Gain staff involvement by encouraging employees to take the lead in creating a more psychologically safe work environment. Level 1 employees are given a budget to come up with a plan and review policies. (Cost: \$3,000)
4. Provide Mental Health First Aid training for supervisors. Prepare your supervisors with the tools to handle a mental health or substance use challenge or crisis in the workplace. (Cost: \$6,000)
5. Offer leadership training in basic mental health awareness and make a company-wide announcement that mental health is a priority. Having leadership buy-in is always important; all employees will be made aware of the company's stance on mental health. (Cost: \$1,000)
6. Do nothing.

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What are an employer's responsibilities regarding mental health in the workplace?
- What are the potential legal and ethical considerations employers should keep in mind when addressing mental health in the workplace? (Encourage students to be specific to the laws/policies where they live.)
- How can companies strike a balance between productivity and the mental wellbeing of their employees?
- How can organizations measure and track the effectiveness of their mental health initiatives in the workplace?
- How can leaders promote a culture of open communication and empathy when it comes to mental health in the workplace?
- What choice did you make? Why?

Incident 23: Remote and Flexible Work

Summary

Your company has gradually required employees to return to working on site as COVID-19 regulations relaxed, but many current and potential employees are unhappy that you do not have a remote work policy. You will need to balance management's concerns about remote work with employees' preferences as you select a policy to implement.

Full Text

During the COVID-19 pandemic, many of your employees were required to work remotely. As regulations relaxed, employees were gradually required to return to working on site since management felt it was best to have business return to normal. However, the result was not what management anticipated. Several employees quit; additionally, the company has had challenges hiring new employees. A few strong candidates have withdrawn their applications when they learned that your company did not have a remote work policy.

In hopes to stop more star employees from leaving, build the company's employer brand, and attract additional high performers, you have been asked to implement a work-from-home policy that works best for the company. Management is still concerned about the ability for employees to connect. In the past, some of the best company strategies and innovations have derived from informal water cooler conversations and from teams working together in person. During the pandemic when many employees were working from home, the company noticed significantly less innovation and creativity. It was also harder to schedule meetings when everyone was working on somewhat different schedules.

Please select the remote work policy that you will implement for your company.

1. All eligible employees are allowed to work from home. Essentially, any employee who completes most of their duties on a computer can work fully from home.
2. Core days and hours. Eligible employees may work from home on Mondays and Fridays. On the remaining days—Tuesdays, Wednesdays, and Thursdays—employees must be working on site. During the core hours from 10 a.m. to 2 p.m., all employees must be available for meetings and scheduled communication. The remaining hours in an employee's shift are flexible as long as the employee is completing their scheduled tasks.
3. Each eligible employee is allotted three work-from-home days per calendar month. Employees are expected to use discretion when scheduling remote days so that they are not away for important in-office meetings and events.
4. Do nothing.

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What measures can a company take to maintain a sense of community, collaboration, and employee engagement when working remotely?
- What criteria should be used to evaluate the success of a remote work policy, and how often should it be reviewed and updated?
- How can a company address potential inequalities or disparities that may arise from implementing a remote work policy, such as differences in access to resources or work-life balance?
- What training and support should managers and supervisors receive to effectively manage remote teams?
- What other remote work solutions would you propose beyond the ones listed here?
- What choice did you make? Why?

Incident 24: Adverse Effect Discrimination

Summary

Your company has been accused of adverse effect discrimination related to the hiring of a new warehouse employee. To avoid further claims and ensure that diverse candidates are considered for every position, choose one or more recruiting and/or selection methods to implement.

Full Text

The warehouse shipping and receiving crew at your company consists of young white men ages 22-30. They get along well and know how to work together effectively. In fact, they all play on the same recreational hockey team and often go out for drinks after work.

With a recent increase in production, there was an urgent need to hire an additional warehouse shipping and receiving employee. Desperate to quickly fill the vacancy, the warehouse supervisor offered the warehouse crew a \$500 referral bonus if they referred friends to come join the team. Within a couple of days, a friend of one of the warehouse employees applied for the job and was hired immediately. The new employee learned his job tasks quickly and fit in very well. Word recently got out that the company hired another white man in his 20s who also plays recreational hockey with the crew. Several possible candidates (women, racially minoritized, and Indigenous people) had been looking for this type of position, but they had no way of knowing that there were even openings. The company has been accused of adverse effect discrimination, and the results of the ongoing human rights tribunal could be expensive.

You need to hire yet another warehouse employee, and you want to avoid any future adverse effect discrimination claims by implementing strategies and practices that ensure fairness and equity. Select none, one, or more recruiting and/or selection methods that you will implement.

1. Update company website and signage. Update your company website and signage to include photos of employees from diverse backgrounds working in various jobs at the company. (Cost: \$2,000)
2. Diversify recruitment sources. Utilize a wide range of recruitment sources to attract a diverse pool of candidates. This includes partnering with community organizations, attending job fairs, and leveraging online platforms that reach candidates from different backgrounds. (Cost: \$5,000)
3. Train hiring managers and recruiters. Provide training programs to hiring managers and recruiters to increase their awareness of unconscious bias and its potential impact on decision-making. Training will include strategies for recognizing and mitigating bias in the hiring process. (Cost: \$5,000)
4. Implement blind screening. Remove identifying information (such as name, gender, age, and race) from job applications and resumes during the initial screening process. This helps to minimize unconscious bias and allows for a more objective evaluation of applicants' qualifications. (Cost: \$2,000)
5. Foster a culture of diversity and inclusion. Create a plan to recognize and celebrate the diversity within your organization. Highlight employee accomplishments, cultural events, and important diversity-related milestones. Create opportunities for employees to share their cultural backgrounds, traditions, and experiences. (Cost: \$2,000)

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What is an organization or employer's responsibility in addressing adverse effect discrimination? Why is it important?
- What are some potential challenges and obstacles that may arise when addressing adverse effect discrimination, and how can they be overcome?
- What are some successful examples or case studies of initiatives that have effectively addressed adverse effect discrimination? What lessons can be learned from these examples?
- What other actions might you take to combat adverse effect discrimination beyond the ones listed here?
- What choice(s) did you make? Why?

Incident 25: Bona Fide Occupational Requirement

Summary

One of your employees has recently been diagnosed with a condition that makes it difficult for him to continue to perform his current job. Since he no longer meets a bona fide occupational requirement for the position, you must decide how to proceed.

Full Text

Hardeep has been working as a parts and delivery driver for your company for the past three years. During this time, he has performed well in this position and has been able to make several trips a day in the company vehicle to pick up parts or deliver packages.

However, just recently, Hardeep has struggled a bit to keep up with the demands of his job. He started noticing difficulties with his vision and made an appointment to have his eyes tested. After testing, Hardeep was diagnosed with a genetic eye condition that is causing him to slowly lose his vision.

When Hardeep was hired, the screening requirements for his position included holding a commercial driver's license and passing the required vision test. Being able to pass the vision test is a bona fide occupational requirement (BFOR) for the safety of the employee and others. Since Hardeep no longer meets the BFOR for the position, you must decide how you will proceed. Select the action you will take.

1. You provide Hardeep with a severance package and lay him off. Since Hardeep is no longer able to fulfill the position that he was hired to do, you provide Hardeep with outplacement services and a severance package with his layoff. The outplacement services will support Hardeep in preparing for new job opportunities. (Cost: \$5,000)
2. You offer to train Hardeep for another position that he will be able to perform while visually impaired. You work with Hardeep to determine another position in the company that he is qualified for, with duties he would feel comfortable performing. You will provide thorough training to help him familiarize himself with his new role. (Cost: \$7,000)
3. You train another employee as a driver to work with Hardeep. With the help of the driver, Hardeep can still complete much of his job safely. He can walk in and out of buildings to pick up parts and deliver packages. Hardeep has developed great relationships with the various people he interacts with, and he represents the company in a positive light. (Cost: \$5,000 to train the new driver)
4. Do nothing.

Discussion Questions for Your Team

Invite an open discussion, asking students to share their incident selection and resulting message.

- What steps should employers take to establish that a particular job requirement is a BFOR? How can they ensure compliance with anti-discrimination laws?
- In what situations can an employer legally impose a BFOR that may discriminate against a protected group? How does the law balance the rights of individuals with the needs of organizations?
- What are some potential drawbacks or unintended consequences associated with BFORs? How can organizations mitigate these risks while still ensuring a safe and efficient workforce?
- How can employees or job applicants challenge the legitimacy of a BFOR? What recourse do they have under the law?
- What other accommodations or solutions might have been possible in Hardeep's situation?
- What choice did you make? Why?

Incident 26: Job Evaluation for Pay Equity

Summary

There have been several recent complaints about pay equity within your company. To ensure fair compensation, you must implement a job evaluation method to determine the relative worth of each job.

Full Text

Recently, there have been several complaints about pay equity in your company. In particular, department supervisors are complaining that they are being paid significantly less than the technicians even though they have more responsibility and direct reports.

To ensure that employees in your company are being paid fairly and according to their responsibilities, their job requirements, and the value they add to your company, you will need to develop a job evaluation method. A job evaluation is the systematic process of determining the relative worth of jobs to establish which jobs should be paid more than others in an organization. It helps establish internal equity, yet each method of job evaluation requires good judgment. The results of your job evaluation will be used to allocate future wage increases or cuts for each job level.

Select one of the following job evaluation methods to implement.

1. Job Ranking System. All jobs are ranked into a hierarchy by either one individual or by a committee. Rankings are based on some critical factor to job success (e.g., responsibility), or rankings can be based on the total importance of the job to the organization. (Cost: \$3,000)

2. Job Classification System. Jobs are classified and grouped according to a series of predetermined wage grades. Each grade increase requires more job responsibility, skill, knowledge, ability, etc. Once the grades are defined, a job is slotted into a grade by comparing the individual job description to the grade descriptions. (Cost: \$7,000)

3. Point System. This quantitative job evaluation procedure determines the relative value of a job by the total points assigned to it. Points are assigned to jobs based on the degree to which jobs possess different compensable factors. The major compensable factors are skill, effort, responsibility, and working conditions. These factors are subdivided into degrees. (Cost \$10,000)

4. Market-Based Pay Structures. Wage and salary surveys are used to help set wages in line with the market. The survey data will be collected through an external consultant. (Cost: \$7,000)

5. Do nothing. Do not enact a new job evaluation system.

Discussion

Invite an open discussion, asking students to share their incident selection and resulting message.

- Which job evaluation method did you choose, and why?
- What issues or objections might you expect from employees based on your choice?
- What are the benefits and downsides of qualitative vs. quantitative methods of job evaluation?
- What benefits would you expect to see within your company as a result of establishing better pay equity through job evaluation?

Incident 27: Employee Selection Process

Summary

You are screening for a new security officer position at your company and want to be sure you are hiring employees who are a good fit for the company and do not require extensive training. As you evaluate candidates, you will select one or more screening tests to administer as well as an interview technique to use.

Full Text

You have heard some complaints that new hires require considerable training, and they are not always a great fit for your company. You want to ensure that your company is developing an effective selection process that reduces bias. This will be important as you begin screening for a new position at your company.

To be more prepared and protect the safety of the company, employees, and the public, your company has decided to hire its own security officers. In this position, the security officer will observe and report activities and incidents; make patrols to check for irregularities; maintain order and act to enforce regulations and directives pertaining to personnel, visitors, and premises; check for unsafe conditions, unlocked doors, security violations, mechanical problems, and unauthorized persons; and respond to incidents of fire, medical emergency, threat, flooding, and other incidents.

You have recruited several candidates who all have the minimum qualifications for the security officer position. From the pool of candidates, you need to screen for those who have the knowledge, skills, and abilities to be successful in the position and who will be a good company fit. It is important that your screening be both reliable, valid, and cost effective. Take some time to research the validity, reliability, and cost effectiveness of the various screening methods below. You will select the type(s) of screening tests to administer as well as the interview technique you will use.

First, please choose the employment test(s) you will use to screen for the security officer positions:

1. **Personality Test.** Measure personality or temperament through an online test. (Cost: \$2,000)
2. **Ability Test.** Measure candidates' skills, knowledge, and ability pertaining to job requirements with the goal of predicting their ability to do the job. (Cost: \$3,500)
3. **Performance Test.** Measure the ability of applicants to perform some parts of the work for which they are applying. Examples: a) Situational Judgment Test, in which applicants are placed into hypothetical job scenarios and asked to select a behavioral response from among a list of alternative courses of action; b) Assessment Center, which combines several methods of assessment (e.g., job simulations, in-basket exercises, interviews, etc.) to identify managerial potential. (Cost: \$6,000).
4. **Integrity Test.** Measure an applicant's honesty, trustworthiness, and dependability through overt and non-overt questions about dishonesty and counterproductive behaviors. (Cost: \$2,000)
5. **Cognitive Ability Test.** Measure an applicant's cognitive abilities (reasoning, perception, memory, verbal and mathematical ability, and problem solving) using questions designed to estimate applicants' potential to solve work-related problems or to acquire new job

knowledge. (Cost: \$3,000)

6. Polygraph Test. Commonly known as a lie detector test, this test measures physiological indicators such as blood pressure, pulse, respiration, and skin conductivity while a person is asked a series of questions. (Cost: \$4,000)

7. Physical Ability Test. Assess physical strength, endurance, and quality of movement needed for the job by testing the use of muscle force over varying periods of time, either alone or in conjunction with an ability to maintain balance or body coordination. (Cost: \$3,000)

Next, please choose the interview style you will implement.

1. Unstructured Interview. The interviewer focuses on open discussion to evaluate the candidates; the nature of the conversation guides the development of the questions asked.

2. Structured Interview. The interviewer uses the same set of standardized questions for each candidate with a set of benchmarks or a rubric marking guide.

Discussion

Invite an open discussion, asking students to share their incident selection and resulting message.

- Which test(s) did you choose? Which interview structure did you choose? Why?
- How do you believe current and prospective employees would respond to your interview choices?
- What, if anything, surprised you about the results of your choice? Is there anything you would do differently?
- What makes the unstructured interview format a poor choice?
- How would you expect the choice of assessment(s) to influence the type and quality of employee you will hire at the end of the process?